

Present :

Mr. Justice Ashish Ranjan Das.

Criminal Revision No. 1823 of 2021

In the matter of:

Md. Habibur Rahman

..... Petitioner

-Versus-

Md. Abdul Kader and another

..... Opposite parties.

Mr. Shahinoor Alam, Advocate

.....For the petitioner.

Mr. Md. Sajjadur Rahman, Advocate

..... Opposite party No.1.

Heard on:27.11.2022, 02.01.2023,

10.01.2023 and 12.01.2023

Judgment on: 30.01.2023

Ashish Ranjan Das, J:

Learned Sessions Judge, Chapainawabganj by his judgment dated 24.03.2021 passed in Criminal Appeal No. 421 of 2020 dismissed the appeal and thereby affirmed the judgment of conviction passed by the learned Joint Sessions Judge, 2nd Court,

Chapainawabganj dated 16.07.2017 in Sessions Case No. 859 of 2016 wherein the petitioner was convicted under section 138 of the Negotiable Instruments Act of 1881 and was sentenced to suffer rigorous imprisonment for 1(one) year followed by a fine of Tk. 8,50,000/-. Being further aggrieved the convict appellant preferred this criminal revisional application.

Short fact is that the convict petitioner borrowed an amount and on the pretext of repaying it through a cheque of Tk. 8,50,000/- on 01.02.2016 drawn on Islami Bank Limited, the cheque was pressed for encashment with Sonali Bank, New market branch, that was dishonored on 04.04.2016.

However, the complainant opposite party issued a legal notice according to law on 31.05.2016 but of no avail and hence was the case. In trial the appellant remained absent. He appeared and preferred this appeal.

Now the ground vehemently raised by the learned

advocate for the convict petitioner Md. Habibur Rahman is that initially the case was defective one, rather not covered by law since the demand notice after dishonourment of the cheque was issued long after expiry of the period, the cheque was dishonored on 04.04.2016 according to the complaint itself (page 21), the legal notice was issued on 31.05.2016 i.e. far beyond 30 days.

The learned advocate for the complainant opposite party raised that this issue of delayed legal notice was not raised during trial or during appeal. It appears that the petitioner remained absent, this legal defect attracting the proviso of section 138 of the Negotiable Instruments Act, sub-clause (d) was for the first time raised in the revisional application and not before.

But to me that do not matter, since it was a question of legal limitation categorically embodied in

sub-section-e of the proviso of section 138 of the Negotiable Instruments Act of 1881, it was mandatory for all concerned. The trial court ought to have not taken cognizance of the offence that was barred by law and beyond his limitation and jurisdiction.

However, nowhere has it been raised that the money was repaid; in that case the complainant lender had clear chance to knock the doors of the competent criminal courts under penal code.

In any case, since it became vivid enough that at the time of taking cognizance of the case by the trial court under section 138 of the Negotiable Instruments Act of 1881, the matter was barred by limitation particularly sub- section-b of the provision appended to section 138 of the Negotiable Instruments Act of 1881, the case was barred.

As a result, the Rule is made absolute and the judgments and conviction passed

by the courts below are set aside.

However, it does not in one hand debar the convict petitioner from withdrawing the statutory amount in deposit, on the other hand, the complainant may make efforts for realization of the money within the provisions of the civil court.

Communicate the judgment and order to the courts below.

Send down the Lower Court Records.

(Justice Ashish Ranjan Das)

Bashar B.O.